

JUSTIFICATION
FOR AN EXCEPTION TO FAIR OPPORTUNITY

1. Contracting Activity: Department of Veterans Affairs (VA)
Office of Procurement, Acquisition and Logistics
Technology Acquisition Center
23 Christopher Way
Eatontown, NJ 07724
2. Description of Action: The proposed action is for a firm-fixed-price delivery order to be issued under the National Aeronautics and Space Administration (NASA) Solutions for Enterprise-Wide Procurement (SEWP) V Government-wide Acquisition Contract (GWAC) for brand name Gigamon hardware and software maintenance and technical support.
3. Description of Supplies or Services: The VA Office of Information and Technology, Cybersecurity Management, Infrastructure Operations (IO) has a requirement for Gigamon hardware maintenance and technical support including telephone, e-mail, or internet support to troubleshoot malfunctioning equipment/components or to provide replacement equipment/components that restore full operation and accessibility to the original redundant component configuration. The hardware and supporting software are part of an integrated monitoring system that was built upon Gigamon devices. The maintenance is required to ensure the existing hardware remains operational. Additionally, hardware maintenance shall consist of firmware upgrades, updates to include major releases, point releases, service releases, and security releases of applicable firmware on a quarterly basis, and within 48 hours in cases where a high-risk vulnerability fix becomes available. Initial response to all requests for maintenance shall be initiated within one hour of the initial notification from VA. This action is for services only. No hardware or software will be procured as a result of this action. The period of performance shall be a 12-month base period from May 1, 2025, through April 30, 2026, with one 12-month option period. The total estimate price of this action is \$5,910,371.26 including all options.
4. Statutory Authority: Pursuant to Federal Acquisition Regulation (FAR) Subpart 16.505(a)(4), the following brand name requirement is being justified and approved as an exception to fair opportunity under the statutory authority of Section 41 U.S.C. 4106(c)(2) as implemented by FAR Subpart 16.505(b)(2)(i)(B), entitled "Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized."
5. Rationale Supporting Use of Authority Cited: Based on market research, as described in Section 8 of this document, it was determined limited competition is available among resellers for this requirement. The current IO infrastructure is based on existing VA owned Gigamon hardware and software VA requires support compatible with the existing infrastructure protocols and functionality for continued operational availability. The existing, in-use, Gigamon devices and products located at five IO data centers only integrate with other Gigamon devices. Specifically, both the administrative control interface which controls the network visibility fabric and the physical device interfaces for clustering and load balancing are proprietary and only Gigamon devices are able to

integrate into the existing Gigamon infrastructure. Only Gigamon or a reseller can provide the necessary hardware maintenance because the network visibility/port aggregation/filtering hardware solutions from other vendors will not integrate with the existing IO Gigamon infrastructure. Alternative vendors would not have access to the underlying proprietary firmware code needed to properly configure the hardware or provide upgrades or updates. Due to these proprietary constraints, use of any alternative hardware maintenance and technical support would require these sites to replace the existing VA owned Gigamon infrastructure in place. Additionally, it would also require duplicative use of VA resources for maintenance, engineering, management transition, and training for implementation. Based on previous acquisition history, VA estimates that implementation would also require a minimum of 24 months of individual site coordination and travel costs, plus the transition time. In addition, a prior implementation of Gigamon hardware already exists in IO. Based on previous acquisition history, VA estimates the duplicative cost associated with replacement of the existing infrastructure, inclusive of training efforts and travel time would be approximately [REDACTED]. These estimated duplicative costs would not be recovered through competition. This figure does not account for the minimum 24 month time investment needed for VA engineering design, testing, procedure development, and implementation that would be required for a new product. To replace the system would not be cost or time effective. No other hardware maintenance is compatible with or interoperable with the existing Gigamon hardware. The proprietary hardware restricts other non-Gigamon products from interoperating with Gigamon central management and licensing. In addition, only Gigamon, or a reseller, can provide the required firmware updates since access to Gigamon's proprietary code is required to ensure all the services provided are properly configured. Further, even if another brand of hardware and software maintenance and technical support existed that could integrate with existing Gigamon infrastructure, utilization of another brand of hardware and software maintenance and technical support may jeopardize existing warranties in place with the hardware. Failure to maintain maintenance for the Gigamon hardware could result in sensitive Veteran, patient, and VA employee data becoming compromised. In addition, security monitoring will become degraded due to no updated malware patches from Gigamon

6. Efforts to Obtain Competition: Market research was conducted, details of which are in Section 8 of this document. This effort did not yield any additional sources that can meet the Government's requirements. It was determined, however, that limited competition is viable among resellers for this brand name hardware maintenance and technical support. In accordance with FAR 5.301 and 16.505(b)(2)(ii)(D), the award notice for this action will be synopsisized on the Contracting Opportunities website and the justification will be made publicly available within 14 days of award. In addition, in accordance with FAR 16.505(a)(4)(iii)(A), this Justification for an Exception to Fair Opportunity will be posted with the solicitation on the NASA SEWP V website.

7. Actions to Increase Competition: The Government will continue to conduct market research to ascertain if there are changes in the marketplace that would enable future requirements for the required malware protection appliances described herein to be competed. Market research is currently underway working with the Office of Strategic

Sourcing (OSS) to find an equivalent solution for the underlying Gigamon infrastructure, which can be quickly integrated into the VA infrastructure with a focus on completing this effort in the next 24 months.

8. Market Research: In January 2025, Government technical subject matter experts (SME) conducted web-based market research to ascertain if any other non-proprietary but fully compatible and functional hardware maintenance and technical support is available. VA SMEs compared hardware maintenance and technical support from various vendors such as CommView and Solar Winds Netflow who have similar offerings and determined that none have access to the proprietary source code required to maintain the VA owned existing Gigamon infrastructure. No other manufacturer has the capability of developing and issuing hardware maintenance for Gigamon to support existing IO requirements. The products researched were unable to meet the functional requirements, performance functional requirements, and integration with existing installed hardware, and hardware maintenance requirements. Based on the above, market research concluded that hardware maintenance from any other provider except Gigamon would not meet VA's interoperability and compatibility requirements outlined in Section 5 of this document. Only Gigamon hardware maintenance meets all of the Government's requirements.

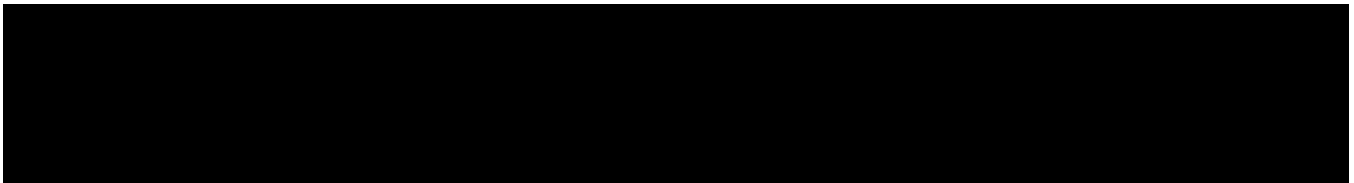
Additional market research was performed in March 2025 utilizing the NASA SEWP V GWAC Provider Lookup tool, which yielded multiple, prospective contract holders that are resellers of brand name Gigamon products. Of these contract holders, several were verified to be Service-Disabled Veteran-Owned Small Business (SDVOSB) concerns. Furthermore, the NASA SEWP V GWAC has a dynamic catalog where line items can be added based on customer requests; therefore, as long as the required item or service is within scope of the NASA SEWP V GWAC, items and services can be added to the catalog on a daily basis. This requirement has been found to be within scope of the NASA SEWP V GWAC in a separate determination. As a result of the aforementioned market research, there is reasonable expectation competition exists on the NASA SEWP V GWAC amongst two or more SDVOSB concerns for brand name Gigamon hardware maintenance and technical support, and accordingly, this effort will be released to all SDVOSBs in groups B, C and D on the NASA SEWP V GWAC.

9. Other Facts: N/A

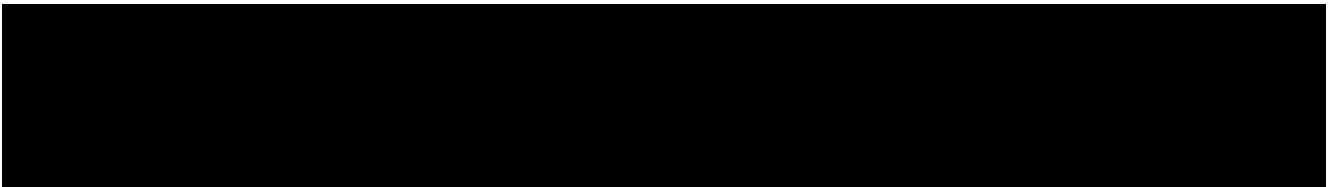
10. Technical and Requirements Certification: I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.



11. Fair and Reasonable Cost Determination: I hereby determine that the anticipated price to the Government for this contract action will be fair and reasonable because NASA SEWP GWAC prices have previously been determined fair and reasonable. Additionally, price competition is expected among resellers for this action. Additional price analysis may be performed in accordance with FAR 15.404-1(b).



12. Procuring Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.



Approval

In my role as procuring activity Advocate for Competition, based on the foregoing justification, I hereby approve the acquisition of Gigamon hardware and software maintenance and technical support on an other than fair opportunity basis pursuant to the authority cited in Section 4 above, subject to availability of funds, and provided that the services herein described have otherwise been authorized for acquisition.

